

IndiaCode

The Cattle-Trespass Act, 1871

(ACT NO. 1 OF 1871)

[*As on the* 1st June, 2026]

LIST OF AMENDING ACTS

1. The Cattle-trespass Act (1871) Amendment Act, 1891 (1 of 1891).
2. The Repealing and Amending Act, 1914 (10 of 1914).
3. The Jan Vishwas (Amendment of Provisions) Act, 2026 (8 of 2026).

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LIST OF ABBREVIATIONS USED

Cl., cls.	*for*	Clause, clauses.
Ins.	,,	Inserted.
Notifn.	,,	Notification.
S., ss.	,,	Section, sections.
Sch.	,,	Schedule.
Subs.	,,	Substituted.
w.e.f.	,,	with effect from.

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THE CATTLE-TRESPASS ACT, 1871

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THE CATTLE-TRESPASS ACT, 1871

ACT NO. 1 OF 1871[1]

[13*th January*, 1871.]

An Act to consolidate and amend the law relating to Trespasses by Cattle.

Preamble.—WHEREAS it is expedient to consolidate and amend the law relating to trespasses by cattle; It is hereby enacted as follows :—

CHAPTER I

PRELIMINARY

[2][**1. Title and extent.—**(*1*) This Act may be called the Cattle-trespass Act, 1871; and

(*2*) It extends to the whole of India except [3][the territories which, immediately before the 1st November, 1956, were comprised in Part B States], and the presidency-towns and such local areas as the State Government, by notification in the Official Gazette, may from time to time exclude from its operation.

[4][* * * * *]

STATE AMENDMENT

Maharashtra

Amendment of section 1 of Act 1 of 1871.—In section 1 of the Cattle-trespass Act, 1871, in its application to the State I of Bombay (hereinafter referred to as the "principal Act"), to sub-section (2) the 1871, following proviso shall be added, namely:—

"provided that on the commencement of the Cattle-trespass (Bombay Extension and Amendment) Act, 1959 (Bom. XIII of 1959), it shall extend to those areas in which the Hyderabad, Cattle Trespass Act, or as the case may be the Cattle-trespass Act, 1871 (Hyd. Act V of 1837, 1 of 1871), as modified and applied to the Saurashtra area of the State of Bombay was in force immediately before such commencement."

[*Vide* Bombay Act XIII of 1959, s. 3]

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1. This Act has been amended locally—
in Ajmer by Ajmer Act 5 of 1954;
in Assam by Assam Act 1 of 1936;
in Bombay by Bombay Acts 9 of 1924, 4 of 1926, 5 of 1931 and 13 of 1959;
in Madhya Pradesh by C. P. Acts 12 of 1935, 22 of 1937 and C. P. & B. Act 27 of 1948 and Madhya Pradesh Act 11 of 1960;
in Orissa by Orissa Acts 15 of 1948 and 23 of 1950;
in Punjab by Punjab Acts 24 of 1952 and 18 of 1959;
in Sambalpur District by Orissa Act 6 of 1939;
in U.P. by U.P. Act 7 of 1954;
in West Bengal by Bengal Act 5 of 1934 and rep. in pt. by Ben. Act 14 of 1947 and West Ben. Acts 7 of 1948 and 4 of 1956;
in Madras by Madras Act 20 of 1957;
in Andhra Pradesh by Andhra Pradesh Act 30 of 1961;
in Himachal Pradesh by Himachal Pradesh Act 7 of 1974.
The Act has been extended to the whole of Madhya Pradesh by Madhya Pradesh Act 23 of 1958 (when notified), to the NEFA by Reg. 3 of 1960, s. 3 and Sch., subject to certain modifications (w.e.f. 1-11-1960), extended to and brought into force in Dadra and Nagar Haveli by Reg. 6 of 1963, s. 2 and Sch. I (w.e.f. 1-7-1965) and to the whole of the Union territory of Lakshadweep by Reg. 8 of 1965, s. 3 and Sch. (w.e.f. 1-10-1967).
The Act came into force in Pondicherry on 1-10-1963 *vide* Reg. 7 of 1963, s. 3 and Sch. I.
The Act has been repealed in its application to Ballery District by Mysore Act 5 of 1955 and to Malabar District of Kerala by Kerala Act 26 of 1961.
2. Subs. by Act 1 of 1891, s. 1, for section 1.
3. Subs. by the Adaptation of Laws (No. 2) Order, 1956, for "Part B States".
4. Sub-section (*3*) rep. by Act 10 of 1914, s. 3 and Sch. II.

2. [*Repeal of Acts. References to repealed Acts*.] *Rep. by the Repealing Act*, 1938 (1 *of* 1938).

[1][**3. Definitions.—** In this Act, unless the context otherwise requires,—

(*a*) "adjudicating officer" means the Sub-Divisional Magistrate or any other Executive Magistrate authorised by the State Government or the Union territory administration, as the case may be;

(*b*) "appellate authority" means the District Magistrate or the Additional District Magistrate authorised by the State Government or the Union territory administration, as the case may be;

(*c*) "cattle" includes also camels, buffaloes, horses, mares, geldings, ponies, colts, fillies, mules, asses, pigs, rams, ewes, sheep, lambs, goats and kids;

(*d*) "local authority" means Municipal Corporation, Municipal Council, Municipality, Cantonment Board, Notified Area Committee, Gram Panchayat or any other authority for the time being vested by law with the control and administration of any matters within a specified local area; and

(*e*) "officer of police" also includes village-watchman.]

CHAPTER II

POUNDS AND POUND-KEEPERS

4. Establishment of pounds.—Pounds shall be established at such places as the Magistrate of the District, subject to the general control of the State Government, from time to time directs.

The village by which every pound is to be used shall be determined by the Magistrate of the District.

5. Control of pounds. Rates of charge for feeding impounded cattle.—The pounds shall be under the control of the Magistrate of the District; and he shall fix, and may from time to time alter, the rates of charge for feeding and watering impounded cattle.

[2][**6. Appointment of pound-keepers. Pound-keepers may hold other offices. Pound-keepers to be public servants.—**The State Government shall appoint a pound-keeper for every pound.

Any pound-keeper may hold simultaneously any other office under the Government.

Every pound-keeper shall be deemed to be a public servant within the meaning of [3][clause (*28*) of section 2 of the Bharatiya Nyaya Sanhita, 2023 (45 of 2023)].]

DUTIES OF POUND-KEEPERS

7. To keep registers and furnish returns.—Every pound-keeper shall keep such registers and furnish such returns as the State Government from time to time directs.

8. To register seizures.—When cattle are brought to a pound, the pound-keeper shall enter in his register,—

(*a*) the number and description of the [4][cattle],

(*b*) the day and hour on and at which they were so brought,

(*c*) the name and residence of the seizure, and

(*d*) the name and residence of the owner, if known,

and shall give the seizer or his agent a copy of the entry.

9. To take charge of and feed cattle.—The pound-keeper shall take charge of, feed and water the cattle until they are disposed of as hereinafter directed.

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1. Subs. by Act 8 of 2026, s. 2 and Sch., for section 3 (w.e.f. 1-6-2026).
2. Subs. by the A.O. 1937, for s. 6.
3. Subs. by Act 8 of 2026, s. 2 and Sch., for "the Indian Penal Code (45 of 1860)" (w.e.f. 1-6-2026).
4. Subs. by s. 2 and Sch., *ibid*., for "animals" (w.e.f. 1-6-2026).

CHAPTER III

IMPOUNDING CATTLE

10. Cattle damaging land.—The cultivator or occupier of any land,

or any person who has advanced cash for the cultivation of the crop or produce on any land,

or the vendee or mortgagee of such crop or produce or any part thereof,

may seize or cause to be seized any cattle trespassing on such land and doing damage thereto or to any crop or produce thereon, and [1][send them or cause them to be sent within twenty-four hours] to the pound established for the village in which the land is situate.

Police to aid seizures.—All officers of police shall, when required, aid in preventing (*a*) resistance to such seizures, and (*b*) rescues from persons making such seizures.

STATE AMENDMENT

Maharashtra

Amendment of section 10 of Act I of 1871.—In the principal Act, in section 10, after the words and figures "the Bombay Village panchayat Act, 1933," the words "or any corresponding law in force in any part of the State of Bombay" shall be inserted.

[*Vide* Bombay Act XIII of 1959, s. 4]

Maharashtra

Amendment of sections 10, 12 and 26 of, and insertion of new section 28A in Act I of 1871.—In the Cattle-trespass Act, 1871—

(1) in section 10, after the words "or any part thereof" the following shall be inserted, namely:—

"or a watch and ward appointed by a panchayat established under the Bombay Village Panchayats Act, 1933, or any person authorised by the State Government in this behalf, either by name or by virtue of office."

[*Vide* Bombay Act XXXIV of 1950, s. 2]

[2]**11. Cattle damaging public roads, canals and embankments.—**Persons in charge of public roads, pleasure-grounds, plantations, canals, drainage-works, embankments and the like and officers of police, may seize or cause to be seized any cattle doing damage to such roads, grounds, plantations, canals, drainage-works, embankments and the like, or the sides or slopes of such roads, canals, drainage-works or embankments or found straying thereon,

and shall [3][send them or cause them to be sent within twenty-four hours] to the nearest pound.

[4][**12. Penalties for cattle impounded.—**(*1*) For every head of cattle impounded as aforesaid, the pound-keepers shall impose penalty in accordance with the scale for the time being prescribed by the State Government in this behalf by notification in the Official Gazette and different scales may be prescribed for different local areas.

(*2*) All penalties so imposed shall be deposited with the Magistrate of the District through such officer as the State Government may direct.

(*3*) A list showing the penalties and the rates of charge for feeding and watering cattle shall be posted in a conspicuous place on or near to every pound.]

1. Subs. by Act 1 of 1891, s. 3, for "'take them or cause them to be taken without unnecessary delay".
2. As to the application of s. 11 to forests, *see* the Indian Forest Act, 1927 (7 of 1927), s. 70; to railways *see* the Indian Railways Act, 1890 (9 of 1890), s. 125 (*4*).
3. Subs. by Act 1 of 1891, s. 4, for "take them without unnecessary delay".
4. Subs. by Act 8 of 2026, s. 2 and Sch., for section 12 (w.e.f. 1-6-2026).

STATE AMENDMENT

Maharashtra

Insertion of new sections 12A and 12B in Act I of 1871.—In the principal act, after section 12, the following new sections shall be inserted, namely:—

"**12A. Security in respect of impounded cattle**.—(1) In any local area to which he state Government may, by notification in the Official Gazette, apply this section , every pound-keeper shall, before releasing any impounded cattle, require the owner of the impounded cattle or his agent to make, in the form to be prescribed by the State Government, a declaration regarding the ownership of such cattle and to deposit by way of security such sum as the state Government may, by rules, prescribe, Different scales may be prescribed for different areas or different classes of cattle.

(2) If any cattle belonging to such owner are impounded within a period of six months from the date on which the security is deposited, and if the seizure is not adjudged illegal, the amount of deposit or a part thereof, as may be directed by the State Government by rules made in this behalf, shall stand forefeited to the State Government. If cattle are not impounded as aforesaid, the amount of security deposit shall, on an application may by or on behalf of the depositor, be refunded to him on the expiry of that period.

(3) On every occasion on which the release of the cattle impounded under this Act is claimed, the owner of the cattle shall deposit a fresh security.

12B. Removal of cattle to specified places.—(1) If in any local area to which the State Government may, by notification in the Official Gazette apply this section, a Mamlatdar, Tahsildar, Naib-Tahsildar or Mahalkari is satisfied—

(i) that the grazing land set apart for the use of cattle of one or more village in the taluks, tahsils or mahal under his jurisdiction is insufficient for the cattle belonging to the permanent residents of such village or villages; or

(ii) that the crops or grass standing on any agricultural land or grazing land so set apart are likely to be damaged by cattle belonging to persons who are not residents of such village or villages and who own more than twenty head of cattle,

he may—

(a) in any case referred to in clause (i) direct any such resident owner, by special or general order, to remove or cause to be removed all or any dry or useless cattle belonging to him to such place or places within the State and within such period as may be specified in the order, and

(b) in any case referred to in clause (ii) direct any such non-resident owner, by special or general order, to remove or cause to be removed all or any of his cattle to such place or places within the state and within such period as may be specified in the order.

(2) If the owner of the cattle fails to remove the cattle as directed under sub-section (1), the Mamlatdar, Tahsildar, Naib-Tahsildar or Mahalkari, as the case may be, may direct a police officer not below the rank of a head constable to remove or cause to be removed such cattle to the place or places specified in the order.

(3) If the Mamlatdar, Tahsildar, Naib-Tahsildar or Mahalkari is satisfied that the order issued by him under sub-section (1) is contravened by any owner or keeper of cattle, he may impose a fine not exceeding one thousand rupees. Any fine so imposed may, on failure of such owner or keeper to pay the same within the specified time, by recovered by sale of all or any of the cattle ordered to be removed under sub-section (1)."

[*Vide* Bombay Act XIII of 1959, s. 5]

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In section 12,—

(a) the words "head of" shall be deleted;

(b) for the words "Different scales may be prescribed for different local area" the following shall be substituted, namely:—

"Progressively increasing scales may be prescribed in respect of cattle belonging to or kept by the same person according to the number of cattle impounded at a time and the number of times such cattle are impounded and different scales may be prescribed for different local areas.";

[*Vide* Maharashtra Act XXXIV of 1950, s. 2]

CHAPTER IV

DELIVERY OR SALE OF CATTLE

13. Procedure when owner claims the cattle and pays [1][penalties] and charges.—If the owner of the impounded cattle or his agent appear and claim the cattle, the pound-keeper shall deliver them to him on [2][payment of penalties imposed] and charges incurred in respect of such cattle.

The owner or his agent, on taking back the cattle, shall sign a receipt for them in the register kept by the pound-keeper.

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STATE AMENDMENT

Maharashtra

Amendment of section 13 of Act 1 of 1871.—In the principal Act, to the first paragraph of section 13, the following shall be added, namely:—

"and on depositing the amount of security prescribed under section 12A."

[*Vide* Bombay Act XIII of 1959, s. 6]

14. Procedure if cattle be not claimed within a week.—If the cattle be not claimed within seven days from the date of their being impounded, the pound-keeper shall report the fact to the officer in charge of the nearest police-station, or to such other officer as the Magistrate of the District appoints in this behalf.

Such officer shall thereupon stick up in a conspicuous part of his office a notice stating—

(*a*) the number and description of the cattle,

(*b*) the place where they were seized,

(*c*) the place where they are impounded,

and shall cause proclamation of the same to be made by beat of drum in the village and at the market-place nearest to the place of seizure.

If the cattle be not claimed within seven days from the date of the notice, they shall be sold by public auction by the said officer, or an officer of his establishment deputed for that purpose, at such place and time and subject to such conditions as the Magistrate of the District by general or special order from time to time directs:

Provided that, if any such cattle are, in the opinion of the Magistrate of the District, not likely to fetch a fair price if sold as aforesaid, they may be disposed of in such manner as he thinks fit.

1. Subs. by 8 of 2026, s. 2 and Sch., for "fines" (w.e.f. 1-6-2026).
2. Subs. by s. 2 and Sch., *ibid*., for "payment of the fines" (w.e.f. 1-6-2026).

15. Delivery to owner disputing legality of seizure but making deposit.— If the owner or his agent [1][appear and refuse to pay the said penalties and expenses], on the ground that the seizure was illegal and that the owner is about to make a complaint under section 20, then , upon [2][deposit of the penalties imposed] and charges incurred in respect of the cattle, the cattle shall be delivered to him.

STATE AMENDMENT

Maharashtra

Amendment of section 15 of Act 1 of 1871.—In the principal Act, section 15 shall be renumbered as sub-section (1) of that section, and after sub-section (*1*) as so renumbered, the following new sub-section shall be inserted, namely:—

"(2) If on any complaint referred to in sub-section (*1*) the seizure is declared to be lawful, or if the owner or his agent fails to make such complaint within a period of four weeks from the date of delivery of the cattle to him, the pound keeper of shall require such owner or agent to make a declaration and to deposit the amount of security as required by section 12A. If the owner or his agent fails to make such declaration or to deposit such amount, the cattle delivered to him under sub-section (1) shall be seized for the purpose of section 16."

[*Vide* Bombay XIII of 1959, s. 7]

16. Procedure when owner refuses or omits to pay the [3][penalties] and expenses.— If the owner or his agent appear and refuse or omit to pay or (in the case mentioned in section 15) to [4][deposit the said penalties imposed] and expenses, the cattle, or as many of them as may be necessary, shall be sold by public auction by such officer at such place and time, and subject to such conditions, as are referred to in section 14.

[5]**[Deduction of penalties and expenses].—**The [6][penalties imposed] and the expenses of feeding and watering, together with the expenses of sale, if any, shall be deducted from the proceeds of the sale.

Delivery of unsold cattle and balance of proceeds.—The remaining cattle and the balance of the purchase-money, if any, shall be delivered to the owner or his agent, together with an account showing—

(*a*) the number of cattle seized,

(*b*) the time during which they have been impounded,

(*c*) the amount of [7][penalties] and charges incurred,

(*d*) the number of cattle sold,

(*e*) the proceeds of sale, and

(*f*) the manner in which those proceeds have been disposed of.

Receipts.—The owner or his agent shall give a receipt for the cattle delivered to him and for the balance of the purchase-money (if any) paid to him according to such account.

STATE AMENDMENT

Maharashtra

Amendment of section 16 of Act 1 of 1871.—In section 16 of the principal Act, for the first and second paragraphs the following new paragraphs shall be substituted, namely:-

"If the owner or his agent appears and refuses or omits to pay the said fines and expenses and to deposit the said amount of security or (in the case mentioned in section 15) to deposit the said fines,

1. Subs. by Act 8 of 2026, s. 2 and Sch., for "appear and refuse to pay the said fines and expenses" (w.e.f. 1-6-2026).
2. Subs. by s. 2 and Sch., *ibid*., for "deposit of the fines" (w.e.f. 1-9-2026).
3. Subs. by s. 2 and Sch., *ibid*., for "fines" (w.e.f. 1-6-2026).
4. Subs. by s. 2 and Sch., *ibid*., for "deposit the said fines" (w.e.f. 1-9-2026).
5. Subs. by s. 2 and Sch., *ibid*., for "Deduction of fines and expenses" (w.e.f. 1-6-2026).
6. Subs. by s. 2 and Sch., *ibid*., for "fines leviable" (w.e.f. 1-6-2026).
7. Subs. by s. 2 and Sch., *ibid*., for "fines" (w.e.f. 1-6-2026).

expenses and amount of security or to make a declaration as required by section 12A, the cattle or as many of them as may be necessary, shall be sold by public auction by such officer, at such place and time, and subject to such conditions, as are referred to in section 14, or disposed of in accordance with the provisions therein.

The fines leviable and the expenses of feeding and watering together with the expenses of safe, if any, and the amount of security prescribed under section 12A shall be deducted from the proceeds of the sale."

[*Vide* Bombay Act XIII of 1959, s. 8]

17. Disposal of [1][penalties], expenses and surplus proceeds of sales.— The officer by whom the sale was made shall send to the Magistrate of the District [2][the penalties so deducted].

The charges for feeding and watering deducted under section 16 shall be paid over to the pound-keeper, who shall also retain and appropriate all sums received by him on account of such charges under section 13.

The surplus unclaimed proceeds of the sale of cattle shall be sent to the Magistrate of the District, who shall hold them in deposit for three months, and, if no claim thereto be preferred and established within that period, shall, at its expiry, [3][be deemed to hold them as part of the revenues of the State].

STATE AMENDMENT

Maharashtra

Amendment of section 17 of Act 1 of 1871.—In section 17 of the principal Act, after the second paragraph, the following new paragraph shall be inserted, namely:-

"The amount of security required under section 12A shall be deposited with the pound-keeper."

[*Vide* Bombay Act XIII of 1959, s. 9]

18. [*Application of fines and unclaimed proceeds of sale.*] *Rep. by the A.O.* 1937.

19. Officers and pound-keepers not to purchase cattle at sales under Act.—No officer of police or other officer or pound-keeper appointed under the provisions herein contained shall, directly or indirectly, purchase any cattle at a sale under this Act.

Pound-keepers when not to release impounded cattle.—No pound-keeper shall release or deliver any impounded cattle otherwise than in accordance with the former part of this Chapter unless such release or delivery is ordered by a Magistrate or Civil Court.

[4][CHAPTER V

COMPLAINTS OF ILLEGAL SEIZURE OR DETENTION

20. Power to make complaints.—Any person whose cattle have been seized under this Act, or having been so seized, have been detained in contravention of this Act, may, at any time within ten days from the date of the seizure, make a complaint to the Magistrate of the District or any Magistrate authorised to receive and try charges without reference by the Magistrate of the District.

21. Procedure on complaint.—The complaint shall be made by the complainant in person or by an agent personally acquainted with the circumstances. It may be either in writing or verbal. If it be verbal, the substance of it shall be taken down in writing by the Magistrate.

If the Magistrate, on examining the complainant or his agent, sees reason to believe the complaint to be well founded, he shall summon the person complained against, and make an enquiry into the case.

22. Compensation for illegal seizure or detention.— If the seizure or detention be adjudged illegal, the Magistrate shall award to the complainant, for the loss caused by the seizure or detention, reasonable compensation, not exceeding [5][five thousand rupees], to be paid by the person who made the seizure or

1. Subs. by Act 8 of 2026, s. 2 and Sch., for "fines" (w.e.f. 1-6-2026).
2. Subs. by s. 2 and Sch., *ibid*., for "the fines so deducted" (w.e.f. 1-6-2026).
3. Subs. by the A.O. 1937, for "dispose of them as hereinafter provided".
4. Subs. by Act 1 of 1891, s. 6, for Chapter V.
5. Subs. by Act 8 of 2026, s. 2 and Sch., for "one hundred rupees" (w.e.f. 1-6-2026).

detained the cattle [1][together with all penalties paid] and expenses incurred by the complainant in procuring the release of the cattle,

Release of cattle.—and, if the cattle have not been released, the Magistrate shall, besides awarding such compensation, order their release and direct that [2][the penalties imposed and expenses incurred] under this Act shall be paid by the person who made the seizure or detained the cattle.

23. Recovery of compensation.— The [3][compensation, penalties and expenses] mentioned in section 22 may be recovered as if they were fines imposed by the Magistrate.][4]

CHAPTER VI

PENALTIES

24. Penalty for forcibly opposing the seizure of cattle or rescuing the same.—Whoever forcibly opposes the seizure of cattle liable to be seized under this Act,

and whoever rescues the same after seizure, either from a pound, or from any person taking or about to take them to a pound, such person being near at hand and acting under the powers conferred by this Act,

shall, [5][on being found in default by the adjudicating officer, be liable to penalty of not exceeding five thousand rupees].

[6]**25. Recovery of penalty for mischief committed by causing cattle to trespass.—** [7][Any penalty imposed under the next following section or for mischief] by causing cattle to trespass on any land may be recovered by sale of all or any of the cattle by which the trespass was committed, whether they were seized in the act of trespassing or not, and whether they are the property of [8][the person found liable], or were only in his charge when the trespass was committed.

[9]**[26. Penalty for damage caused to land or crops or public roads by pigs and cattle.—**(*1*) Any owner or keeper of pigs who, through neglect or otherwise, damages or causes or permits to be damaged any land, or any crop or produce of land, or any public road, by allowing such pigs to trespass thereon, shall, on being found in default by the adjudicating officer be liable to penalty not exceeding one thousand rupees.

(*2*) Any owner or keeper of cattle who, through neglect or otherwise, damages or causes or permits to be damaged any land or any crop or produce of land or any public road, by allowing such cattle to trespass thereon, shall, on being found in default by the adjudicating officer be liable to penalty not exceeding five thousand rupees.]

[10]* * * * *

STATE AMENDMENTS

Assam

Substitution of Section 26.—In the principal Act, for section 26, the following section shall be substituted, namely: —

"**26. Penalty for damage caused to land or crops or public roads or for injury caused to any person by cattle or for cattle on public roads.—**

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1. Subs. by Act 8 of 2026, s. 2 and Sch., for "together with all fines paid" (w.e.f. 1-6-2026).
2. Subs. by s. 2 and Sch., *ibid*., for "the fines and expenses leviable" (w.e.f. 1-6-2026).
3. Subs. by s. 2 and Sch., *ibid*., for "compensation, fines and expenses" (w.e.f. 1-6-2026).
4. *See* ss. 63 to 70 of the Indian Penal Code (45 of 1860), and s. 421 of the Code of Criminal Procedure, 1973 (2 of 1974); *cf.* also. s. 25 of the General Clauses Act, 1897 (10 of 1897).
5. Subs. by Act 8 of 2026, s. 2 and Sch., for certain words (w.e.f. 1-6-2026).
6. As to the application of s. 25 in the case of cattle-trespassing on a railway, *see* the Indian Railways Act, 1890 (9 of 1890), s. 125 (*3*) of the General Clauses Act, 1897 (10 of 1897).
7. Subs. by Act 8 of 2026, s. 2 and Sch., for certain words (w.e.f. 1-6-2026).
8. Subs. by s. 2 and Sch., for "the person convicted of the offence" (w.e.f. 1-6-2026).
9. Subs. by s. 2 and Sch., for section 26 (w.e.f. 1-6-2026).
10. The last paragraph of section 26 rep. by Act 10 of 1914.

(*1*) Any owner or keeper or attendant of cattle who through neglect or criminal motive or otherwise damages or causes or permits to be damaged any land or any crop or produce of land or any public road or anything or causes injury to any person or persons by allowing such cattle to trespass thereon, or lets loose any cattle to stray on any public road and thereby causes obstruction to traffic shall, on conviction before a judicial magistrate, be punishable with fine which shall not be less than five hundred rupees but which may extend to one thousand rupees and in default of payment of fine, simple imprisonment for a term not exceeding one month for the first offence and for the subsequent offences, fine not less than one thousand rupees but which may extend to two thousand rupees or to simple imprisonment for a term which may extend to three months.

(*2*) While convicting such person under sub-section (*1*), the magistrate may order him to pay the person whose land, or crop or produce of land or anything has been damaged or the person who is injured, such compensation depending upon the value of the loss or expenses so incurred for the medical treatment, as may be considered reasonable and in default of payment, the cattle in respect of which the offence has been committed shall be forfeited and sold on auction in order to compensate the person so aggrieved."

[*Vide* Assam Act 15 of 2002, s. 2.]

Insertion of section 26A.— In the principal Act, after section 26, the following new section 26A shall be inserted namely: **—**

"**26A. Cognizance of offence**.**—**No Court shall take cognizance of any offence punishable under section 26 except on a report in writing of the facts constituting such offence made by the person aggrieved by such offence or by person who is a public servant as defined in section 21 of the Indian Penal Code, 1860 (Act 45 of 1860)."

[*Vide* Assam Act 15 of 2002, s. 3.]

Uttar Pradesh

Uttar Pradesh Amendment of section 26 of Act (1 of 1871).—For section 26 of the Cattle Trespass Act, 1871, (hereafter called the principal Act), the following shall be substituted—

"**26. Penalty for damage caused to land by cattle.—**Any owner, keeper or attendant of cattle, who though neglect or otherwise, damages or causes or permits to be damaged any land, or any crop or produce of land by allowing such cattle to trespass thereon, shall on conviction before a Magistrate, be liable to a fine not less than Rs. 10 but not exceeding Rs. 250 or to imprisonment for a term not exceeding three months or to both."

[*Vide* Uttar Pradesh Act 7 of 1954, s. 2]

Uttar Pradesh Amendment of section 26 and 28 of Act (1 of 1871).—The State Government may, by notification in the official Gazette, with respect to any local area specified in the notification declare that section 26 of the Principal Act, as amended by this Act and section 28 of the Principal Act, shall stand further amended and modified as specified in the Schedule and with effect from the date of the said declaration the Principal Act shall stand amended accordingly.

2. Application of fines recovered under section 25, 26 or 27.—For section 28 of the Principal Act, the following shall be substitute---

> **"28. Application of fines recovered under sections 25, 26 or 27**.—All fines recovered under section 25, clause (a) of section 26 or section 27 may be appropriated in whole or in part as compensation for loss or damage proved to the satisfaction of the Convicting Magistrate."

[*Vide* Uttar Pradesh Act 7 of 1954, s. 3]

Maharashtra

In section 26,--

(a) the first paragraph shall be numbered as sub-section (1) of that section;

(b) after sub-section (1) so numbered, the following sub-sections shall be inserted, namely:--

"(2) The Magistrate trying the offence under sub-section (1) may order,--

(a) that the accused shall pay such compensation, not exceeding two hundred and fifty rupees, as the Magistrate considers reasonable, to any person for any damage proved to have been caused to his crop or other produce of land by the accused committing the offence;

(b) that the pigs in respect of which the offence has been committed shall be forfeited to the State Government.

(3) Any compensation awarded under sub-section (2) may be recovered as if it was a fine imposed under this section.";

(c) the second paragraph shall be numbered as sub-section (4) of that section and in sub-section (4) so numbered the words "the foregoing portion of" shall be deleted;

[*Vide* Bombay Act XXXIV of 1950, s. 2]

27. Penalty on pound-keeper failing to perform duties.— Any pound-keeper releasing or purchasing or delivering cattle contrary to the provisions of section 19, or omitting to provide any impounded cattle with sufficient food and water, or failing to perform any of the other duties imposed upon him by this Act, shall, over and above any other penalty to which he may be liable, [1][on being found in default by the adjudicating officer, be liable to penalty, not exceeding five thousand rupees and such penalty] may be recovered by deductions from the pound-keeper's salary.

[2][**27A. Adjudication of penalties.—**For the purpose of adjudicating penalties under the provisions of this Act and the rules made thereunder, the State Government or the Union territory administration, may authorise the Sub-Divisional Magistrate or any other Executive Magistrate, as the case may be, having jurisdiction, as an adjudicating officer for holding an inquiry and imposing penalties in such manner as may be prescribed by the Central Government:

Provided that no such penalty shall be imposed without giving the person concerned a reasonable opportunity of being heard.

27B. Appeal.—(*1*) Whoever aggrieved by an order of the adjudicating officer under section 27A may, within thirty days from the date of receipt of the such order, prefer an appeal to the District Magistrate or the Additional District Magistrate specially authorised in this behalf by the State Government or the Union territory administration as an appellate authority, in such form and manner as may be prescribed by the Central Government.

(*2*) An appeal may be admitted to after the expiry of the period of thirty days, if the appellant satisfies the appellate authority that he had sufficient cause for not preferring the appeal within that period.

(*3*) The appellate authority may, after giving the parties to the appeal an opportunity of being heard, pass such order as he may think fit.

(*4*) An appeal under sub-section (*1*) shall be disposed of within sixty days from the date of filing.

27C. Imprisonment for non-payment of penalty.—Where any person fails to pay the penalty imposed under the provisions of this Act and the rules made thereunder within ninety days of such imposition, he shall be punishable with imprisonment for a term which may extend to three months or with fine which may extend to twice the amount of the penalty, or with both.]

[3][**28. Remittance of penalty.—**(*1*) Where an adjudicating officer imposes a penalty under the provisions of this Act and the rules made thereunder, the amount of said penalty realised shall be credited to the fund of the Animal Welfare Board of India constituted under the Prevention of Cruelty to Animals Act, 1960 (59 of 1960).

(*2*) The Board referred to in sub-section (*1*) shall utilise the amount realised through penalty under sub-section (*1*) for the implementation of the provisions of the Act and the rules made thereunder in such manner as may be prescribed by the Central Government.]

1. Subs. by Act 8 of 2026, s. 2 and Sch., for certain words (w.e.f. 1-6-2026).
2. Ins. by s. 2 and Sch., *ibid*. (w.e.f. 1-6-2026).
3. Subs. by s. 2 and Sch., *ibid*., for section 28 (w.e.f. 1-6-2026).

STATE AMENDMENT

Maharashtra

After section 28, the following section shall be inserted, namely:--

"**28A. Offence under section 26 of the be cognizable**.—The offence under section 26 shall be cognizable."

[*Vide* Bombay Act XXXIV of 1950, s. 2]

CHAPTER VII

[1][APPLICATION FOR COMPENSATION]

29. Saving of right to [2][apply for compensation].—Nothing herein contained prohibits any person whose crops or other produce of land have been damaged by trespass of cattle from [3][making an application for compensation to the adjudicating officer].

STATE AMENDMENT

Maharashtra

Substitution of new section 29 for existing section 29 of Act 1 of 1871.—In the principal Act, for the existing section 29, the following new section shall be substituted, namely:--

"**29. Saving of right to sue for compensation**.—Nothing herein contained prohibits any person whose property, crops or other produce of land have been damaged or to whom any hurt or injury or obstruction has been caused by trespass of cattle from suing for compensation in any competent court."

[*Vide* Bombay Act XIII of 1959, s. 10]

30. Set-off.— Any compensation paid to such person under this Act by order of the [4][adjudicating officer] shall be set-off and deducted from any sum claimed by or awarded to him as compensation in [5][such complaint].

[6][CHAPTER VIII

SUPPLEMENTAL

31. Power for State Government to transfer certain functions to local authority.—The State Government may, from time to time by notification in the Official Gazette,—

(*a*) transfer to any local authority within any part of the territories under its administration in which this Act is in operation, all or any of the functions of the State Government or the Magistrate of the District under this Act, within the local area subject to the jurisdiction of the local authority.

[7]* * * * *]

[8][**32. Power of Central Government to make rules.—**(*1*) The Central Government may, by notification in the Official Gazette, make rules not inconsistent with the provisions of this Act, to carry out the provisions of this Act.

(*2*) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(*a)* the manner of holding an inquiry and imposing penalties under section 27A;

(*b*) the form and manner of appeal under sub-section (*1*) of section 27B; and

(*c*) the manner of utilisation of penalty amount under sub-section (*2*) of section 28.

(*3*) Every rule made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session

1. Subs. by Act 8 of 2026, s. 2 and Sch., for chapter heading (w.e.f. 1-6-2026).
2. Subs. by s. 2 and Sch., *ibid*., for marginal heading (w.e.f. 1-6-2026).
3. Subs. by s. 2 and Sch., *ibid*., for "sue for "suing for compensation in any competent Court" (w.e.f. 1-6-2026).
4. Subs. by s. 2 and Sch., *ibid*., for "convicting Magistrate" (w.e.f. 1-6-2026).
5. Subs. by s. 2 and Sch., *ibid*., for "such suit" (w.e.f. 1-6-2026).
6. Chapter VIII was added by Act 1 of 1891, s. 9.
7. Cl. (*b*) was rep. partially by Act 10 of 1914 and partially by the A.O. 1937.
8. Ins. by Act 8 of 2026, s. 2 and Sch. (w.e.f. 1-6-2026).

immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in said rules or both Houses agree that the rules should not be made, the rules shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.]

STATE AMENDMENT

Maharashtra

Insertion of new section 32 after section 31 of Act 1 of 1871.—After section 31 of the principal Act, the following new section shall be inserted, namely:--

"**32. Power to make rules**.—(1) The State Government may, by notification in the Official Gazette, make rule for carrying into effect the purposes of this Act.

(2) In particular but without prejudice to the generality of the foregoing provision, such rules may provide for the following, namely:--

(i) the form of, and the procedure relating to, the declaration, and the scales of deposits to be made, under section 12A;

(ii) the procedure regulating the making of security deposits, custody and refund thereof;

(iii) the manner in which any cattle may be disposed of;

(iv) any other matter which is to be or may be prescribed.

(3) The power to make rules under this section shall be subject to the condition of previous publication in the official Gazette.

(4) All rules make under this section shall be laid before each house of the Legislature as soon as may be after they are made, and shall be subject to such modifications as the State Legislature may make during the session in which they are so laid, or the session immediately following."

[*Vide* Bombay XIII of 1959, s. 11]

[*SCHEDULE.*] *Rep. by the Repealing Act*, 1938 (1 *of* 1938).

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STATEMENT OF OBJECTS AND REASONS

The primary object of this Bill is to consolidate the law relating to cattle-trespass, which is now scattered through three Acts,—III of 1857, V of 1860, and XXII of 1861. The opportunity has been taken to improve the arrangement and the wording of the law; to provide that damages awarded for illegal seizures may be recovered as if they were fines; and (with reference to the case of *Reg. V. Lingana bin Giubana*, 4 Bom. High Court Rep. C. C. 14) to declare expressly that a person when, trough neglect permits a public road to be damaged by allowing thispigs to trespass thereon, is liable to be fined. The cases of *Reg. v. Mir Saheb Cassamia*, 1 Bom. High Court Rep. 100; *Reg.* v. *Mathur Purshotam,* 4 *ib*. C. C. 13; and *Reg*. v. *Ganga Kom Mhasu*, 5 *ib*. C. C. 13, have also been carefully considered.

SIMLA; F. R. COCKERELL.

The 20*th September*, 1870

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